



ISLAMABAD HIGH COURT (ESTABLISHMENT) ORDER, 2007

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PRESIDENT'S ORDER 7 OF 2007

An

order

to provide for the establishment of a High Court for Islamabad Capital Territory

WHEREAS an amendment in Article 175 of the Constitution of the Islamic Republic of Pakistan was made by the Constitution (Amendment) Order, 2007, (Presidents Order No. 5 of 2007), providing that there shall be a High Court for Islamabad Capital Territory;

AND WHEREAS it is expedient to provide for establishment of a High Court for Islamabad Capital Territory and for matters connected therewith or ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the 3rd day of November, 2007, read with Provisional Constitution Order No. 1 of 2007, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following order:

1. Short title and commencement.-(1) This Order may be called the Islamabad High Court (Establishment) Order, 2007.

(2) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

(a) "appointed date" means the date to be appointed by the President for the purposes of this order;

(b) "Chief Justice" means the Chief Justice of the Islamabad High Court and includes the Judge for the time being acting as Chief Justice of the said Court;

(c) "Constitution" means the Constitution of the Islamic Republic of Pakistan;

(d) "Islamabad High Court" means the High Court for the Islamabad Capital Territory established under Article 3 and the words "High Court" wherever occurring in the Constitution shall include Islamabad High Court; and

(e) "Judge" means a Judge of the High Court and includes the Chief Justice and a person who is an Additional Judge of that Court.

3. Islamabad High Court.-(1) As soon as may be after the commencement of this Order, there shall be established a High Court for the Islamabad Capital Territory to be known as Islamabad High Court which shall start functioning with effect from the appointed date.

(2) The principal seat of Islamabad High Court shall be at Islamabad.

(3) The High Court shall comprise of a Chief Justice and such number of Judges as may be fixed by the President from time to time

4. Appointment of Judges. As soon as May be after the commencement of this Order, the President shall, subject to the Constitution, appoint the Chief Justice and as many other Judges of the Islamabad High Court as he thinks fit.

5. Jurisdiction. Islamabad High Court shall have, in respect of the Islamabad Capital Territory, original, appellate and other jurisdiction, as under the Constitution or the laws in force immediately before the commencement of this Order, is exercisable in respect of the said territory by the Lahore High Court:

Provided that the Islamabad High Court will have original jurisdiction over the suits the amount or value of subject-matter of which is twenty-five hundred thousand rupees or more.

6. Powers of Chief Justice and other Judges. Any law in force immediately before the appointed date relating to the powers of the Chief Justice and of single Judges and Benches of the Lahore High Court, and with respect to all matters ancillary to the exercise of those powers, shall, with the necessary modifications, apply in relation to the Islamabad High Court.

7. Other courts.-(1) Subject to the provisions of this order and any order of the competent authority, all civil, criminal and revenue courts, and all tribunals established under any law, which were exercising jurisdiction and functions in the Islamabad Capital Territory immediately before the commencement of this order shall continue to exercise their respective jurisdiction and functions and all persons holding office in such courts or tribunals shall continue to hold their respective offices on the same terms and conditions as were applicable to them immediately before the commencement of this Order, unless otherwise determined by the competent authority.

(2) Notwithstanding anything contained in any other law for the time being in force, all civil, criminal and revenue courts and all tribunals functioning in Islamabad Capital Territory which were within the jurisdiction and under the superintendence and control of the Lahore High Court before the commencement of this order shall, as from the appointed date, fall within the jurisdiction and under the supervision and control of the Islamabad High Court.

8. Procedure as to appeals to Supreme Court. Any law in force immediately before the appointed date relating to appeals to the Supreme Court from the Lahore High Court in respect of cases relating to Islamabad Capital Territory shall, with the necessary modifications, apply in relation to the Islamabad High Court.

9. Practice and procedure.-(1) All laws which are in force immediately before the commencement of this Order, applicable to the Lahore High Court or any court subordinate to it with respect to practice and procedure shall *mutatis mutandis* apply to the Islamabad High Court.

(2) All rules or orders which are in force immediately before the commencement of this Order, with respect to practice and procedure in the Lahore High Court or any court subordinate to it, shall until varied or revoked by rules or orders made by the

Islamabad High Court apply with necessary modifications in relation to practice and procedure in the Islamabad High Court or any court subordinate to it as if they were made by the Islamabad High Court.

10. Transfer of proceedings. All appeals, petitions or other proceedings pending in the Lahore High Court in relation to the Islamabad Capital Territory immediately before the appointed date shall stand transferred to the Islamabad High Court-

Explanation.-For the purposes of this Article and Article 11 or any other Articles of this order where subject so requires, the expression Lahore High Court includes Rawalpindi Bench of the Lahore High Court.

11. Enforcement of orders etc. of Lahore High Court.-(1) Subject to the provisions of clause (2), any order or decision made by the Lahore High Court before the appointed date in relation to Islamabad Capital Territory shall for all purposes be as effective as if made by the Islamabad High Court.

(2) Where any such order or decision as is mentioned in clause (1) has, whether before or after the appointed date, been confirmed, varied or reversed on appeal, review or revision, effect shall be given to the order or decision of the appellate court or that of the Lahore High Court as if the order appealed from was an order of Islamabad High Court.

12. Right to appear or to act in proceedings transferred to Islamabad High Court. Any person who, immediately before the commencement of this order, is an advocate entitled to practice or an attorney entitled to act, in the Lahore High Court and was authorised to appear or to act in any proceedings transferred from the Lahore High Court to the Islamabad High Court under Article 10 shall have the right to appear or to act as the case may be, in the Islamabad High Court in relation to those proceedings.

13. Power to appoint officers and staff. The Chief Justice may appoint the officers and staff of Islamabad High Court as may be prescribed.

14. Expenditure charge upon Federal Consolidated Fund. The expenditure in relation to the Judges of the Islamabad High Court shall be charged upon Federal Consolidated Fund.

15. Removal of difficulties. If any difficulty arises in giving effect to any provision of this order, the President may, by order, make such provisions as appear to him to be necessary or expedient for the removal of the difficulty.

16. Power to adapt laws. For the purpose of facilitating the application of any law in relation to the Islamabad Capital Territory, the Federal Government may, before the expiration of two years from the appointed date by Order make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient to give effect to the provisions of this Order and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent legislature or other competent authority.

17. Amendment of Code of Criminal Procedure. In the Code of Criminal Procedure, 1898 (Act V of 1898), in section 4, in clause (j), after the word "Province" the words "and the Islamabad Capital Territory" shall be added.

18. Amendment of P.O No. 1 of 1970. In the Province of West Pakistan (Dissolution) Order, 1970 (P.O. 1 of 1970), in Article 14, clause (2) shall be omitted.

19. Amendment of P.O. No. 8 of 1970. In the High Courts (Establishment) Order, 1970 (P.O. No 8 of 1970), in Article 3, in clause (1), in paragraph (b), the words "and the Islamabad Capital Territory" shall be omitted.
